

T.898/05, i.e. molecular, cellular and biological function in a broad sense (binding of a ligand, propagation of a transmembrane signal, role in a transduction signal pathway and/or in a network of interconnected pathways of a multicellular organism), could be directly derived from the application itself or from the prior art on file. Although, under certain conditions, the board was well prepared – following the case-by-case approach adopted in decision T.898/05 – to acknowledge a possible function based on computer-assisted methods, in the case before it the probative value of these (sequence homology) methods was completely lacking. In the absence of this functional information, no "immediate concrete benefit" in the sense defined in decision T.898/05 could be recognised for the CEGPCR1a clone disclosed in the application.

In T.1452/06 the board commented that the basis for all the therapeutic indications of the claimed subject-matter was the predicted role of the purported serine protease activity of the polypeptide of sequence SEQ ID NO: 24 in the degradation of the extracellular matrix. No experimental evidence whatsoever was present in the application in support of a serine protease activity for a polypeptide comprising the amino acid sequence of SEQ ID NO: 24. There was no example disclosing this serine protease activity, nor any evidence showing that the screening methods and the therapeutic indications based on this serine protease activity could actually be achieved with a polypeptide of sequence SEQ ID NO: 24. The only use of a polypeptide of sequence SEQ ID NO: 24 was to find out more about the polypeptide itself and its natural function(s); this was a speculative outcome and therefore provided no "immediate concrete benefit" (T.898/05, T.870/04).

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1. Basic principles

1.1. Purpose of claims under Article 84 EPC

Art. 84 EPC provides that claims must define the matter for which protection is sought. It lays down the relevant principles governing the content and wording of the claims, providing that claims should be clear and concise and be supported by the description. It is supplemented by R. 43 EPC.

In G 2/88 (OJ 1990, 93, Corr. 469) the Enlarged Board stated that the primary aim of the wording used in a claim must be to satisfy the requirements under Art. 84 and R. 29(1) EPC 1973 (R. 43(1) EPC), having regard to the particular nature of the invention, and the purpose of the claims. The purpose of claims under the EPC is to enable the protection conferred by the patent or patent application to be determined (Art. 69 EPC), and thus the rights of the patent owner within the designated contracting states (Art. 64 EPC), having regard to the patentability requirements of Art. 52 to 57 EPC.

The boards of appeal have repeatedly confirmed that claims must be clear for the sake of legal certainty, as their purpose is to enable the protection conferred by the patent to be determined (see e.g. T 337/95, OJ 1996, 628; T 586/97; T 437/98; T 728/98, OJ 2001, 319; T 1074/00; T 560/09; T 754/13: "constant jurisprudence"; T 129/13). Legal certainty is of paramount importance in any system where the rights of the public are affected by the grant of a monopoly (T 81/14). The public should not be left in any doubt as to which subject-matter is covered and which is not (T 2086/11, T 2321/13, T 2186/14). The skilled person should be able to establish the demarcation of the scope of the claim (i.e. its extent of protection) without undue burden (T 754/13).

1.2. Types of claim

The Enlarged Board set out in G 2/88 that there are basically two different types of claim, namely a claim to a physical entity (e.g. product, apparatus) and a claim to a physical activity (e.g. method, process, use). These two basic types of claim are sometimes referred to as the two possible "categories" of claim. Within the above two basic types of claim various sub-classes are possible (e.g. a compound, a composition, a machine; or a

manufacturing method, a process of producing a compound, a method of testing, etc.). Furthermore, claims including both features relating to physical activities and features relating to physical entities are also possible. There are no rigid lines of demarcation between the various possible forms of claim.

1.3. Technical features

Under the EPC the claims must define the matter for which protection is sought "in terms of the technical features of the invention" (R. 43(1) EPC). In G 2/88 the Enlarged Board described the technical features of the invention as being the physical features which are essential to it. The technical features of a claim to a physical entity are the physical parameters of the entity, and the technical features of a claim to an activity are the physical steps which define such activity. The Enlarged Board also pointed out, however, that the boards of appeal had in a number of cases allowed the technical features to be defined functionally in certain instances. See in this chapter II.A.3.4.

1.4. Examination of clarity post-grant

Art. 84 EPC is not a ground for opposition. However, when substantive amendments are made to a patent during an opposition, consideration has to be given to whether the amendments introduce any contravention of any requirement of the EPC, including Art. 84 EPC (T 301/87, OJ 1990, 335). In G 3/14 the Enlarged Board analysed whether, and if so to what extent, the requirements of Art. 84 EPC may be examined in opposition and opposition appeal proceedings, in particular if the amended claim is a mere combination of a granted independent claim and granted dependent claims or elements thereof. The Enlarged Board approved T 301/87 and held that, for the purposes of Art. 101(3) EPC, the claims may be examined for compliance with Art. 84 EPC only when, and then only to the extent that the amendment introduces non-compliance with Art. 84 EPC. G 3/14 has been applied in e.g. T 1977/13, T 1905/13, T 565/11, T 248/13, T 1287/14, T 2311/15, T 2321/15, T 1221/19 (clarity of adapted description). See also chapter IV.C.5.2.2 "Extent of power to examine amended claims for compliance with Article 84 EPC".

In G 2/19 (OJ 2020, A87), the Enlarged Board of Appeal held as follows:

Where, although a clarity objection based on Art. 84, second sentence, EPC is not a valid ground for opposition (Art. 100 EPC), a third party within the meaning of Art. 115 EPC chooses to file an "appeal" in order to have this objection nevertheless heard at a higher instance, this amounts to an attempt to circumvent the rules and is thus a clearly inadmissible means of redress.

In T 1661/16 the board found that independent claim 7 lacked clarity: the last feature, added during the opposition procedure and objected to by the appellant (opponent), left it unclear to the skilled person what further structural or functional limitation to the claimed arrangement could be implied by this feature. Rejecting different arguments from the patent proprietor, the board emphasised that the clarity requirement of Art. 84 EPC for an amendment was a substantive one, and that the subjective component in the task of

interpretation was eliminated by taking the position of the skilled person. Thus it could objectively be concluded that the claim as amended was not clear. The meaning, in terms of the limiting effect, of features introduced into a claim must be clear in order that the claim as a whole was clear.

1.5. Clarity of claims and Article 83 EPC

Art. 83 EPC requires that the European patent application discloses the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art. In certain circumstances, for example when undefined parameters are used in the claims and no details of the measuring methods are supplied, the question arises whether there is a problem with respect to Art. 83 or Art. 84 EPC. The answer is important, because Art. 83 EPC is a ground for opposition, whereas Art. 84 EPC is not. See chapter II.C.8. "The relationship between Article 83 and Article 84".

2. Form, content and conciseness of claims

R. 43 EPC concerns the form and content of claims. Apart from the requirement that the claims define the matter for which protection is sought in terms of the technical features of the invention, it concerns the following issues which are the subject of this sub-chapter: the two-part form of claims, the exceptions to the general rule that the application may contain no more than one independent claim in the same category, the reasonable number of claims and the provision that claims should normally not rely on references to the description and drawings in specifying the technical features of the invention. R. 43 EPC has also been discussed in the context of clarity of claims (see in this chapter II.A.3.7.).

2.1. Form of claims: Rule 43(1) EPC

R. 43(1)(a) and (b) EPC (like R. 29(1)(a) and (b) EPC 1973) define the two-part form which a claim is to have where this is appropriate. Such claims must contain a statement indicating the designation of the subject-matter of the invention and those technical features which are necessary for the definition of the claimed subject-matter but which, in combination, form part of the prior art ("preamble"), and a characterising portion stating the technical features for which, in combination with the features stated in the first part, protection is sought. See also Guidelines F-IV, 2 – March 2022 version.

2.1.1 One-part or two-part claim

In T 13/84 (OJ 1986, 253), the board ruled that a claim in two-part form had to be regarded as appropriate if a clearly defined state of the art existed from which the claimed subject-matter distinguished itself by further technical features (likewise T 181/95). This was confirmed by T 162/82 (OJ 1987, 533), where the board added that the extent to which prior art was cited in the description could not determine whether the one-part or the two-part form of a claim was appropriate in a given case.

In T 170/84 (OJ 1986, 400) it was pointed out that where a two-part claim would lead to a complex formulation it was no longer appropriate. In a one-part claim, the features required